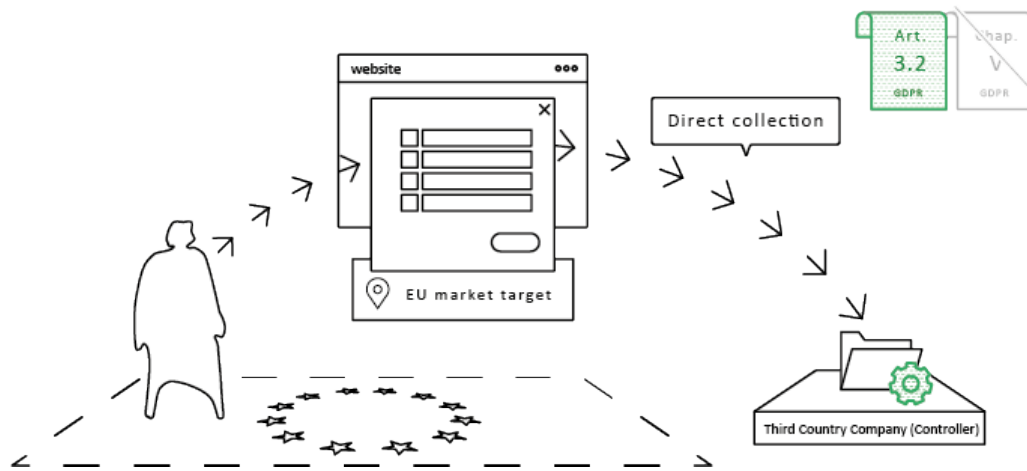
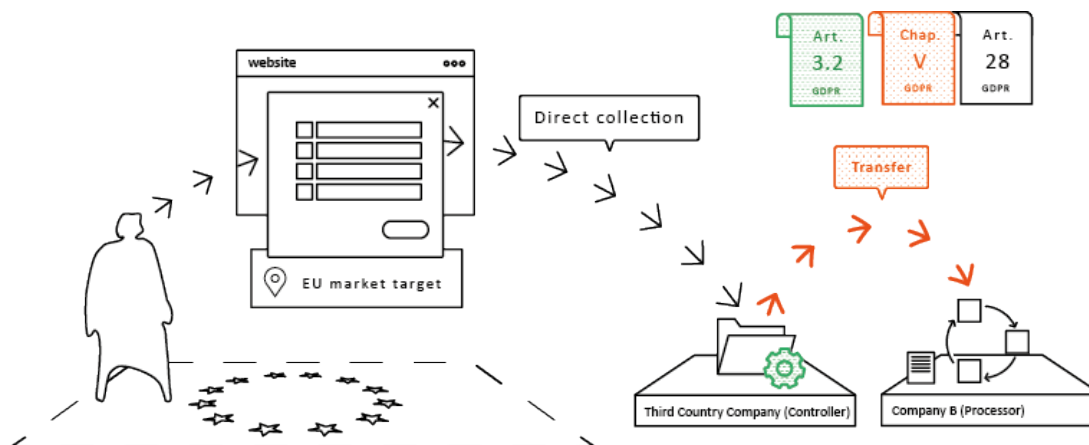




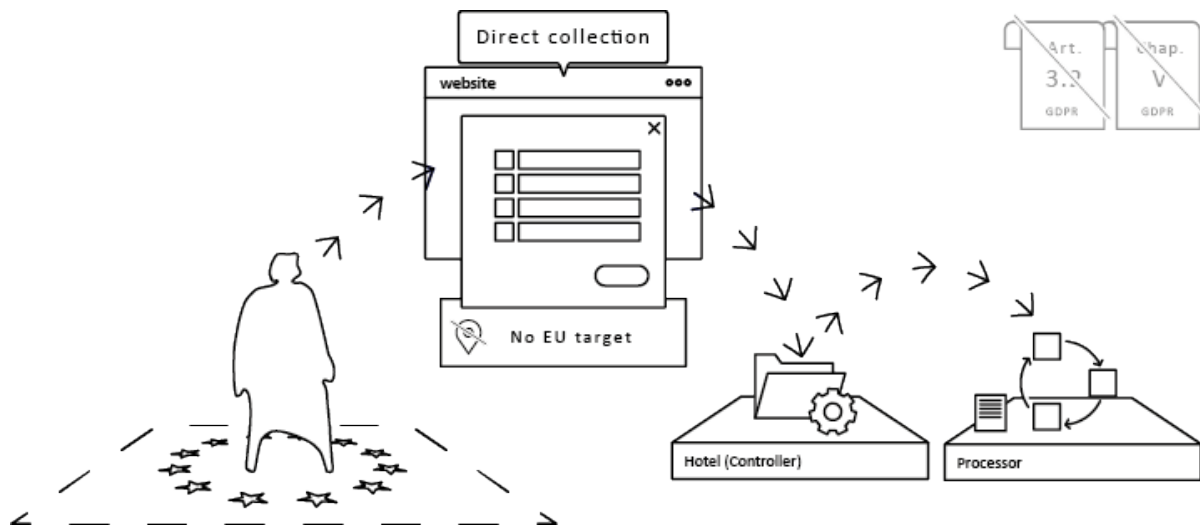
Example 1: Controller in a third country collects data directly from a data subject in the EU (under Article 3(2) GDPR)

Maria, living in Italy, inserts her name, surname and postal address by filling a form on an online clothing website in order to complete her order and receive the dress she bought online at her residence in Rome. The online clothing website is operated by a third country company that has no presence in the EU, but specifically targets the EU market. In this case, the data subject (Maria) passes her personal data to the third country company. This does not constitute a transfer of personal data since the data are not passed by an exporter (controller or processor), but directly collected from the data subject by the controller under Article 3(2) GDPR. Thus, Chapter V does not apply to this case. Nevertheless, the third country company will be required to apply the GDPR since its processing operations are subject to Article 3(2).



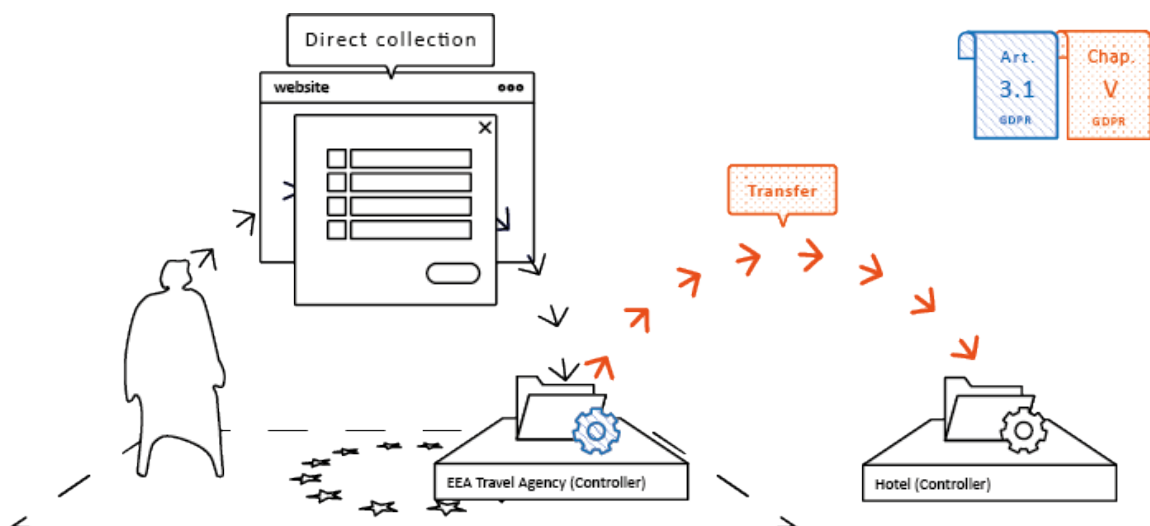
Example 2: Controller in a third country collects data directly from a data subject in the EU (under Article 3(2) GDPR) and uses a processor outside the EU for some processing activities

Maria, living in Italy, inserts her name, surname and postal address by filling a form on an online clothing website in order to complete her order and receive the dress she bought online at her residence in Rome. The online clothing website is operated by a third country company that has no presence in the EU, but specifically targets the EU market. In order to process the orders received by means of the website, the third country company has engaged a non-EEA processor. In this case, the data subject (Maria) passes her personal data to the third country company and this does not constitute a transfer of personal data since the data are directly collected by the controller under Article 3(2) GDPR. Thus, the controller will have to apply the GDPR to the processing of this personal data. As far as it engages a non-EEA processor, such disclosure from the third country company to its non-EEA processor would amount to a transfer, and it will be required to apply Article 28 and Chapter V obligations so as to ensure that the level of protection afforded by the GDPR would not be undermined when data are processed on its behalf by the non-EEA-processor.



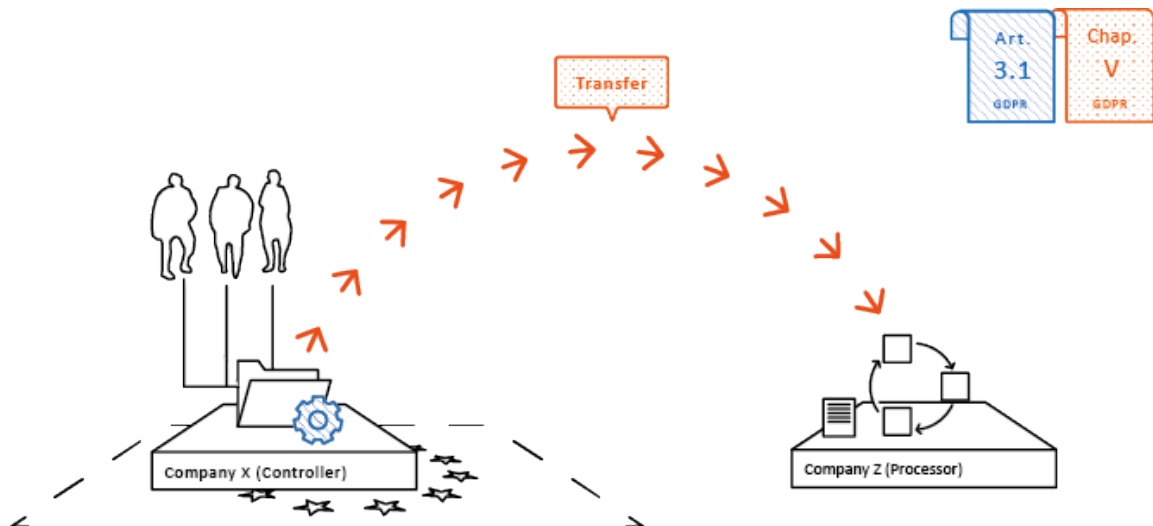
Example 3: Controller in a third country receives data directly from a data subject in the EU (but not under Article 3(2) GDPR) and uses a processor outside the EU for some processing activities

Maria, living in Italy, decides to book a room in a hotel in New York using a form on the hotel website. Personal data are collected directly by the hotel which does not target/monitor individuals in the EEA. In this case, no transfer takes place since data are passed directly by the data subject and directly collected by the controller. Also, since no targeting or monitoring activities of individuals in the EEA are taking place by the hotel, the GDPR will not apply, including with regard to any processing activities carried out by non-EEA processors on behalf of the hotel.



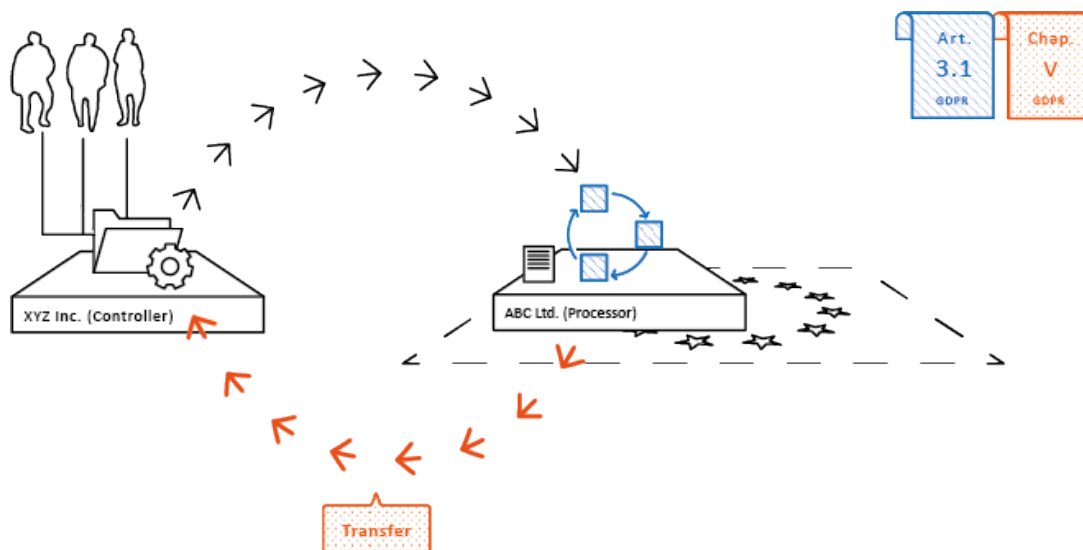
Example 4: Data collected by an EEA platform and then passed to a third country controller

Maria, living in Italy, books a room in a hotel in New York by means of an online EEA travel agency. Maria's personal data, necessary for booking the hotel, are collected by the EEA online travel agency as a controller and sent to the hotel receiving the data as a separate controller. While passing the personal data to the third country hotel, the EEA travel agency carries out a transfer of personal data and Chapter V GDPR applies.



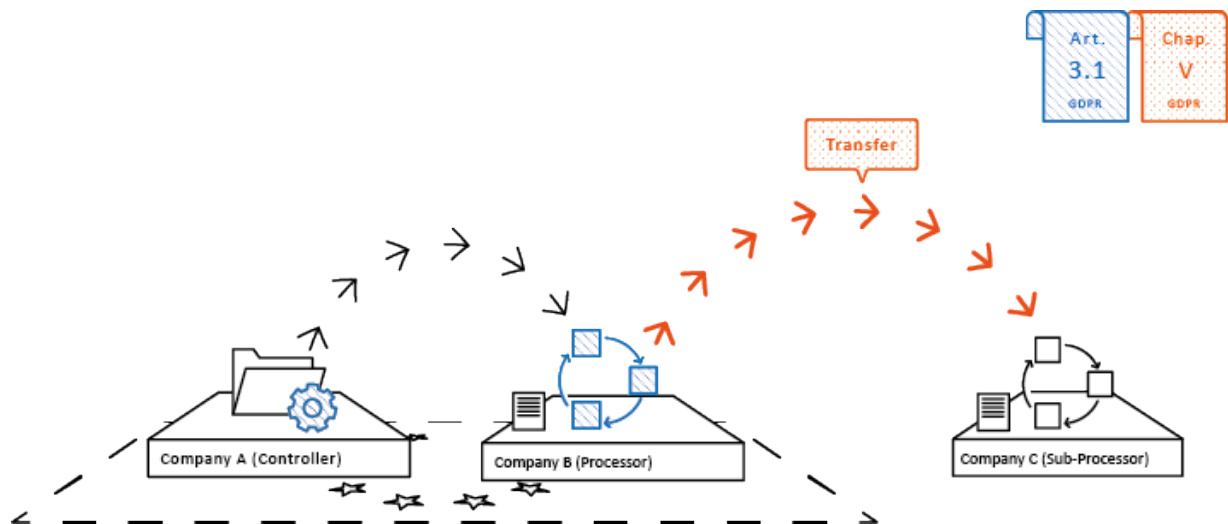
Example 5: Controller in the EU sends data to a processor in a third country

Company X established in Austria, acting as controller, provides personal data of its employees or customers to Company Z in a third country, which processes these data as processor on behalf of Company X. In this case, data are provided from a controller which, as regards the processing in question, is subject to the GDPR, to a processor in a third country. Hence, the provision of data will be considered as a transfer of personal data to a third country and therefore Chapter V of the GDPR applies.



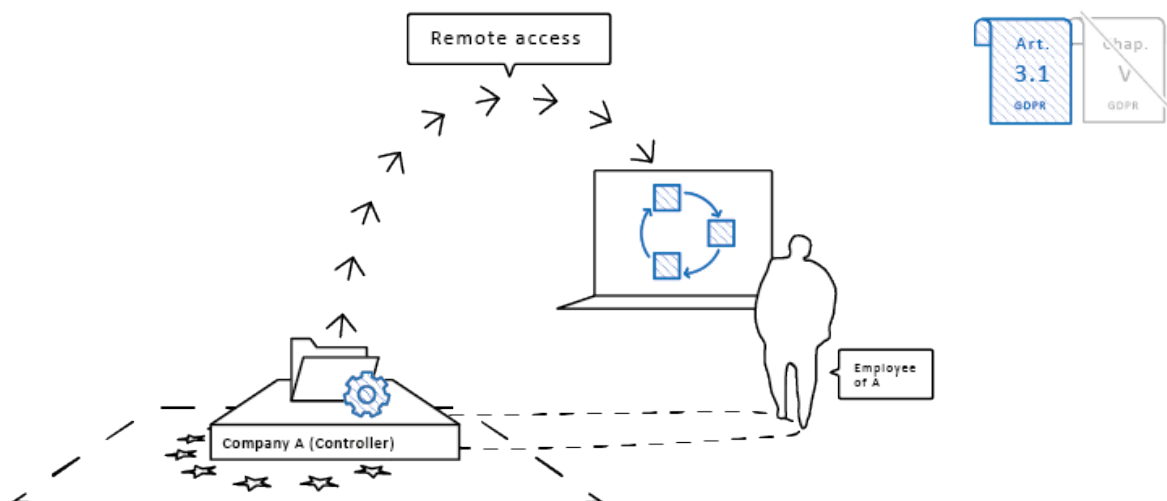
Example 6: Processor in the EU sends data back to its controller in a third country

XYZ Inc., a controller without an EU establishment, sends personal data of its employees/customers, all of them data subjects not located in the EU, to the processor ABC Ltd. for processing in the EU, on behalf of XYZ. ABC re-transmits the data to XYZ. The processing performed by ABC, the processor, is covered by the GDPR for processor specific obligations pursuant to Article 3(1), since ABC is established in the EU. Since XYZ is a controller in a third country, the disclosure of data from ABC to XYZ is regarded as a transfer of personal data and therefore Chapter V applies.



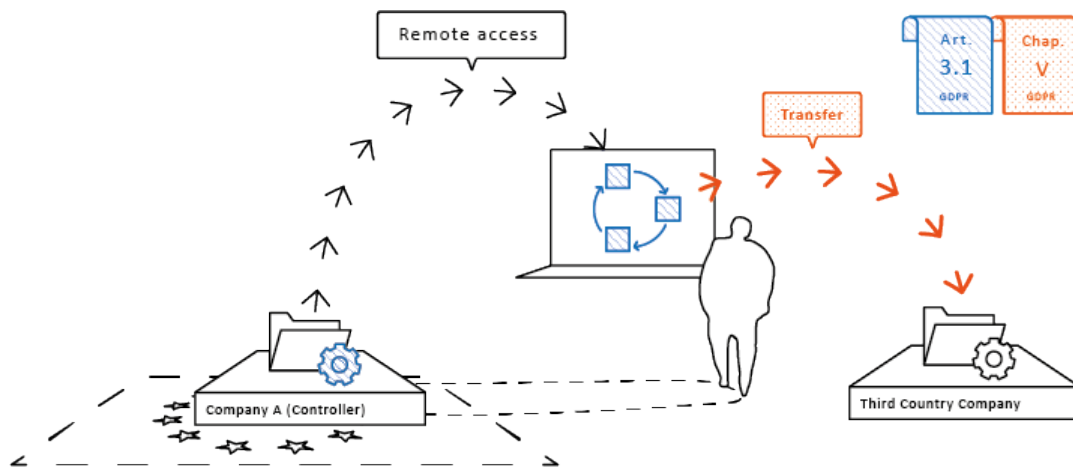
Example 7: Processor in the EU sends data to a sub-processor in a third country

Company A established in Germany, acting as controller, has engaged B, a French company, as a processor on its behalf. B wishes to further delegate a part of the processing activities that it is carrying out on behalf of A to sub-processor C, a company in a third country, and hence to send the data for this purpose to C. The processing performed by both A and its processor B is carried out in the context of their establishments in the EU and is therefore subject to the GDPR pursuant to its Article 3(1), while the processing by C is carried out in a third country. Hence, the passing of data from processor B to sub-processor C is a transfer to a third country, and Chapter V of the GDPR applies.



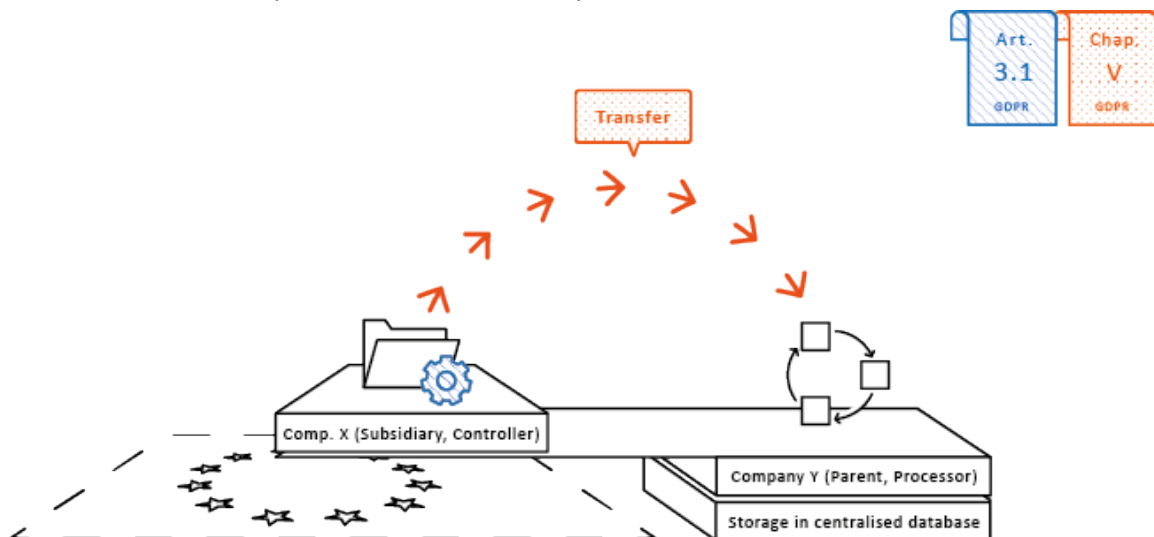
Example 8.1: Employee of a controller in the EU travels to a third country on a business trip

George, employee of A, a company based in Poland, travels to a third country for a meeting bringing his laptop. During his stay abroad, George turns on his computer and accesses remotely personal data on his company's databases to finish a memo. This bringing of the laptop and remote access of personal data from a third country, does not qualify as a transfer of personal data, since George is not another controller, but an employee, and thus an integral part of the controller (A). Therefore, the transmission is carried out within the same controller (A). The processing, including the remote access and the processing activities carried out by George after the access, are performed by the Polish company, i.e. a controller established in the Union subject to Article 3(1) of the GDPR.



Example 8.2: Employee of a controller in the EU travels to a third country on a business trip

George, employee of A, a company based in Poland, travels to a third country for a meeting bringing his laptop. During his stay abroad, George turns on his computer and accesses remotely personal data on his company's databases to finish a memo. This bringing of the laptop and remote access of personal data from a third country, does not qualify as a transfer of personal data, since George is not another controller, but an employee, and thus an integral part of the controller (A). Therefore, the transmission is carried out within the same controller (A). The processing, including the remote access and the processing activities carried out by George after the access, are performed by the Polish company, i.e. a controller established in the Union subject to Article 3(1) of the GDPR. It can, however, be noted that in case George, in his capacity as an employee of A, would send or make data available to another controller or processor in the third country, the data flow in question would amount to a transfer under Chapter V; from the exporter (A) in the EU to such importer in the third country.



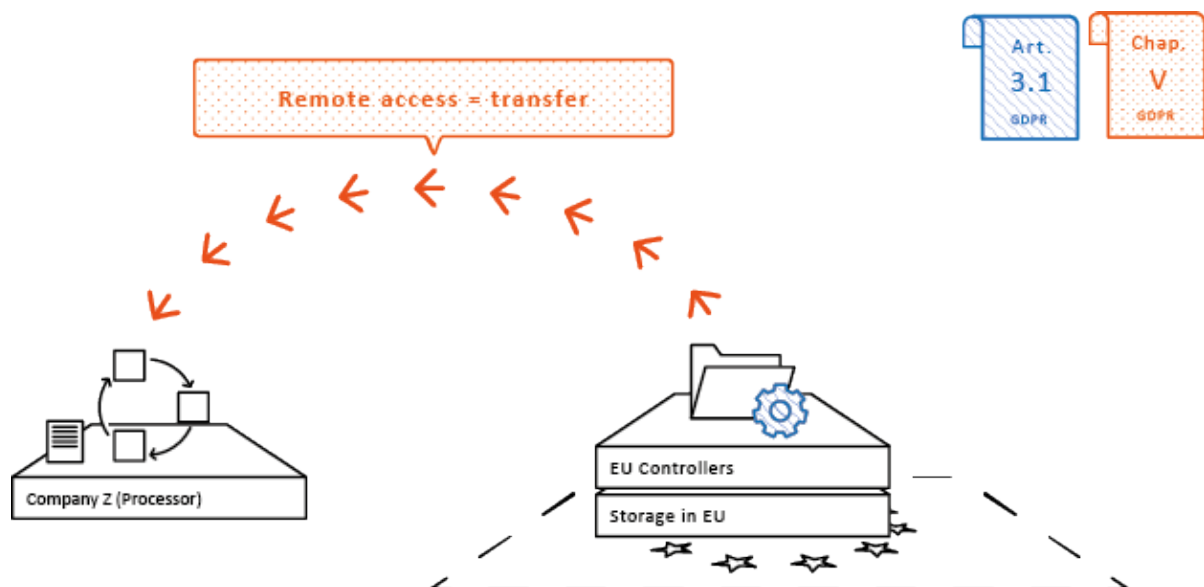
Example 9: A subsidiary (controller) in the EU shares data with its parent company (processor) in a third country

The Irish Company X, which is a subsidiary of the parent Company Y in a third country, discloses personal data of its employees to Company Y to be stored in a centralised HR database by the parent company in the third country. In this case the Irish Company X processes (and discloses) the data in its capacity of employer and hence as a controller, while the parent company is a processor. Company X is subject to the GDPR pursuant to Article 3(1) for this processing and Company Y is situated in a third country. The disclosure therefore qualifies as a transfer to a third country within the meaning of Chapter V of the GDPR.



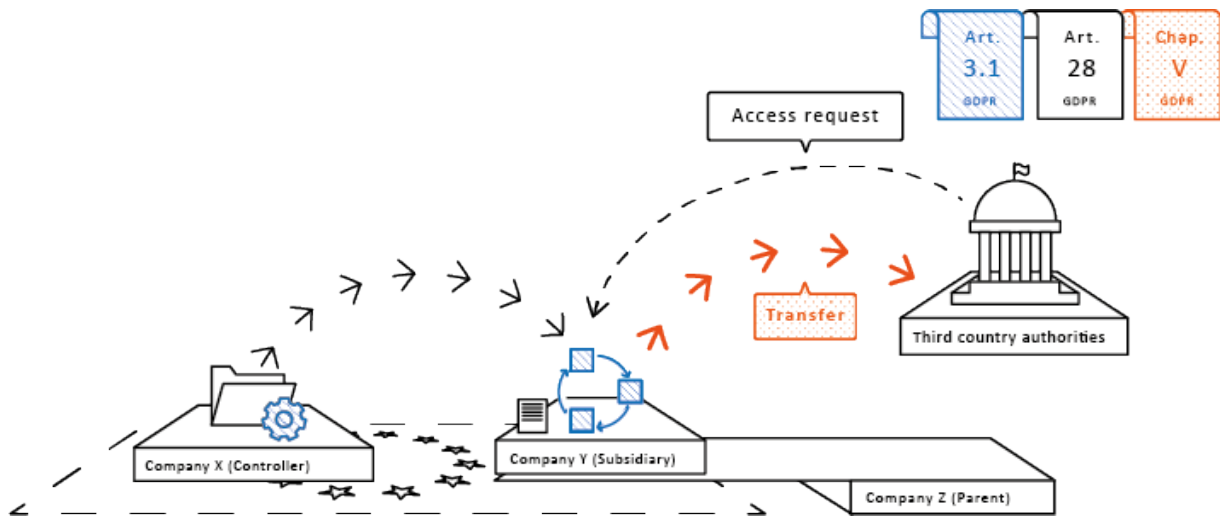
Example 10: Processor in the EU sends data back to its controller in a third country

Company A, a controller without an EU establishment, offers goods and services to the EU market. The French company B, is processing personal data on behalf of company A. B re-transmits the data to A. The processing performed by the processor B is covered by the GDPR for processor specific obligations pursuant to Article 3(1), since it takes place in the context of the activities of its establishment in the EU. The processing performed by A is also covered by the GDPR, since Article 3(2) applies to A. However, since A is in a third country, the disclosure of data from B to A is regarded as a transfer to a third country and therefore Chapter V applies.



Example 11: Remote access to data in the EU by a third country processor acting on behalf of EU controllers

A company in a third country (Company Z), with no establishment in the EU, offers services as a processor to companies in the EU. Company Z, acting as processor on behalf of the EU controllers, is remotely accessing, e.g. for support purposes, the data which is stored in the EU. Since Company Z is located in a third country, such remote access results in transfers of data from the EU controllers to their processor (Company Z) in a third country under Chapter V.



Example 12: Controller in the EU uses a processor in the EU subject to third country legislation

The Danish Company X, acting as controller, engages Company Y established in the EU as a processor on its behalf. Company Y is a subsidiary of the third country parent Company Z. Company Y is processing the data of Company X exclusively in the EU and there is no one outside the EU, including the parent Company Z, who has access to the data. Additionally, it follows from the contract between Company X and Company Y that Company Y shall only process the personal data on documented instructions from Company X, unless required to do so by EU or Member State law to which Company Y is subject. Company Y is however subject to third country legislation with extraterritorial effect, which in this case means that Company Y may receive access requests from third country authorities. Since Company Y is not in a third country (but an EU company subject to Article 3(1) GDPR), the disclosure of data from the controller Company X to the processor Company Y does not amount to a transfer and Chapter V of the GDPR does not apply. As mentioned, there is however a possibility that Company Y receives access requests from third country authorities and should Company Y comply with such request, such disclosure of data would be considered a transfer under Chapter V. Where Company Y complies with a request in violation of the controller's instructions and thus Article 28 GDPR, Company Y shall be considered an independent controller of that processing under Article 28(10) GDPR. In this situation, the controller Company X should, before engaging the processor, assess these circumstances in order to ensure that, as required by Article 28 GDPR, it only uses processors providing sufficient guarantees to implement appropriate technical and organisational measures so that the processing is in line with the GDPR, including Chapter V, as well as to ensure that there is a contract or legal act governing the processing by the processor.